

Dharmendra S/O Bansilal Jain ... vs Mrs. Nidhi Dharmendra Jain (Choudhary) on 27 September, 2016

Author: Prasanna.B.Varale

Bench: Prasanna.B.Varale

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY,

NAGPUR BENCH, NAGPUR.

WRIT PETITION NO. 1912 OF 2015

Dharmendra Bansilal Jain (Choudhary),
aged about 45 years, Occupation
Business, 44 Prasadnagar, Bhamti,
Nagpur - 440 016.

... PETITIONER

VERSUS

Mrs. Nidhi Dharmendra Jain (Choudhary),
aged about 45 years, Occupation Business,

R/o 49, Bajajnagar, Shri Narayan Complex,
Nagpur. ig

... RESPONDENT

....
Shri S.M. Pande, Advocate for the petitioner.

Shri A.N. Ansari, Advocate for the respondent.
....

CORAM : PRASANNA.B.VARALE, J.

DATED : 27TH SEPTEMBER, 2016.

ORAL JUDGMENT :

Rule. Rule made returnable forthwith. Heard finally with the consent of the learned Counsel appearing on behalf of the respective parties. Shri A.N. Ansari, the learned Counsel waives notice on behalf of the respondent.

2. Heard Shri Pande, the learned Counsel appearing on behalf of the petitioner and Shri Ansari, the learned Counsel appearing on behalf of 2 wp1912.15 the respondent. By way of present petition, the petitioner challenges the order dated 16th October, 2014 passed by the learned Judge, Family Court, Nagpur. By the said order, the learned Judge, Family Court allowed the application filed by the respondent/wife under Section 24 read with Section 26 of the Hindu Marriage Act.

3. It would be necessary to refer to certain facts. The marriage between the parties was solemnized on 16th May, 1991. It seems that there was a matrimonial discord between the parties. The petitioner/husband had filed proceedings seeking decree of dissolution of marriage. It would not be necessary to go into all those details or the allegations and counter allegations of the parties levelled against each other. The respondent/wife submitted an application before the learned Judge, Family Court seeking direction to the petitioner to pay college and school fees of his sons.

Needless to state that the couple was blessed with two children i.e. sons. It was submitted in the application that the petitioner/husband moved out of matrimonial house on 01.11.2012. It was further submitted in the application that the applicant i.e. respondent/wife was facing financial difficulties and was somehow managing her household without any support from the petitioner/husband. It was further submitted in the application that the sons namely Harsh and Yash are the students of reputed educational institutes of the city and the finances are required so as to take care of the educational fees of the children. It was also 3 wp1912.15 submitted in the application that the son Harsh was prosecuting his studies in third year in the course of Bachelor of Engineering in the private institute namely Ramedeo Baba Kamla Nehru Engineering College, Nagpur and the academic fees payable is Rs.89,600/-. It was further submitted that the younger son Yash was studying in IX standard in a school Jain Heritage and Cambridge School, Nagpur and his academic fees is Rs.80,000/-. It was submitted that the directions be issued to the petitioner/husband to pay an amount of Rs.1,69,600/- towards the fees of the children i.e. two sons. The application was countered by filing reply.

4. It was submitted in the reply that the respondent/wife is having sufficient means and there are certain insurance policies and on maturity of these insurance policies, the respondent could have

earned an amount of rupees seven lakhs. It was further submitted that there was a specific submission in the reply that the elder son Harsh is 21 years of age and being a major son, the petitioner is not liable to maintain him. In support of his submission, the learned Counsel for the petitioner i.e. husband placed reliance on the judgment of this Court in the case of B. (Husband) .v. A. (Wife) (reported in 1992 (2) Civil LJ, 408) to submit that under Section 26 of the Hindu Marriage Act, the petitioner is liable to pay maintenance only for minor children.

5. The learned Judge, Family Court admitted the position that out of 4 wp1912.15 of two sons, Harsh had attained the majority and held that insofar as the application seeking maintenance for major son Harsh is concerned, the same is rejected. The learned Judge, Family Court then considering the prayer for educational fees of another son Yash, found that son Yash is prosecuting his studies in one of the reputed schools of Nagpur city. The learned Judge further observed that there was nothing on record to submit that the respondent/wife was having sufficient means to bear the expenses of the academic fees of son Yash. The learned Judge further observed that Yash being a minor son, the respondent/wife was required to have a financial support. The learned Judge vide order dated 08.08.2013, allowed the application partly and while rejecting the application of Harsh, directed the petitioner/husband to deposit Rs.80,000/- for the educational expenses of son Yash.

6. The respondent/wife on 14.07.2014 submitted an application under Section 24 read with Section 26 of the Hindu Marriage Act and it was prayed in the application that the applicant i.e. respondent/wife was constrained to file the said application as the husband failed to discharge his burden of providing the financial support to the wife and the children who were taking education. The application was filed on behalf of the children Harsh and Yash. It was submitted in the application that the applicant No.1-Master Yash was prosecuting his studies in XI standard in the school namely Center Point School and the applicant No.2-Harsh 5 wp1912.15 completed his education in B.E. (Industrial Engineering). It was further submitted that as the applicant No.2-Harsh was having no extra qualification as such was unable to obtain good job in any company. It was further submitted in the application that for prosecuting further studies, post graduation course either in MBA or MS would be necessary for getting an employment in any reputed company. It was submitted that the post graduation studies in the stream of engineering requires handsome amount. It was also submitted that for preparation of certain examinations like GRE, the applicant No.2 would be required to pay Rs.30,000/- towards preparation in addition to Rs.15,000/- for the allied expenses such as books, internet and petrol expenses. It was submitted that the applicant No.1 who is the student of XI standard would require Rs.15,000/- as educational expenses i.e. academic fees plus the additional fees for extra curricular activities, food, petrol, mobile recharge, medical health etc. It was submitted that though the mother of the applicants received rupees seven lakhs and odd towards premature surrender of insurance policies, the amount was required for the basic needs and other necessary commodities. It was submitted that as there is no other source of income available with the mother of the applicants and as the father who is the earning handsomely, the amount of Rs.50,000/- be granted towards the preparation and examinations fees and other educational expenses.

6 wp1912.15

7. The said application was also opposed by raising various grounds and denying the submission that the petitioner was leading luxurious life. The learned Judge of the Family Court though referring to the fact that the earlier application filed by the respondent/wife seeking directions for the educational expenses for the sons Harsh and Yash was partly allowed and the claim of son Harsh was rejected, allowed the second application. The learned Judge directed the petitioner/husband to pay an amount of Rs.5,000/- per month to each son i.e. total Rs.10,000/- per month towards interim maintenance from the date of application i.e. 14.07.2014. The order passed by the learned Judge, Family Court was challenged by filing a review application. It was submitted that the learned Judge, Family Court committed an error on the facts as well as on erroneous appreciation of the provisions of law. The learned Judge, Family Court finds no favour with the application seeking review, the learned Judge while deciding the review application observed that the earlier application rejecting the claim of the major son Harsh was by relying on the judgment of this Court in the case of B. (Husband) .v. A. (Wife) (cited supra). Considering the aspect of Section 26 of the Hindu Marriage Act, the learned Judge, Family Court then by observing that there was no impediment for the Court to grant maintenance under Section 24 of the Hindu Marriage Act to major sons, rejected the application.

8. Shri Pande, the learned Counsel for the petitioner vehemently 7 wp1912.15 submits that the order passed by the learned Judge, Family Court dated 16.10.2014 is clearly unsustainable. It is the first submission of the learned Counsel for the petitioner that when the learned Judge, Family Court at the first instance i.e. when the respondent/wife submitted an application seeking direction for payment of the education fees for sons Harsh and Yash allowed the application partly only in respect of son Yash, the learned Judge, Family Court could not have taken a diagonally opposite view while allowing the application by order dated 16.10.2014. The learned Counsel for the petitioner submits that this Court in the the case of B. (Husband) .v.

A. (Wife) (cited supra), in clear terms, held that the remedy under Section 26 could be availed only in respect of minor children. He further submits that there could not have any other distinction for allowing the application in case of major son Harsh.

9. Per contra, Shri Ansari, the learned Counsel for the respondent supports the order impugned in the petition and vehemently submits that in an application moved by the respondent/wife for grant of maintenance under Section 24 of the Hindu Marriage Act, the Court could not find favour with the applicant/wife and the application was rejected. The order of the learned Judge, Family Court was challenged by presenting writ petition in this Court and as the writ petition was also dismissed, the respondent/wife submitted Special Leave Petition before the Hon'ble Apex Court. Shri Ansari, the learned Counsel places on record the copy of the 8 wp1912.15 order passed by the Apex Court. Perusal of the order shows that while the petition was posted before the Hon'ble Apex Court on 05.11.2015, the Apex Court passed the order as follows :-

"Prima facie, it appears that the petitioner is entitled to maintenance and the reasoning given by the Family court as well as by the High Court disallowing the maintenance, prima facie, appears to be incorrect.

However, in course of arguments, learned counsel for the respondent submitted that he will seek instructions from the respondent as to the amount which he shall be ready to pay by way of maintenance to the petitioner-wife and the minor son."

When the matter was posted on 18.11.2015, a statement was made on behalf of the respondent/wife who was the petitioner before the Apex Court that the husband is paying maintenance to his children and he is unable to pay maintenance to the respondent/wife. After hearing the Counsel, the Hon'ble Apex Court directed the petitioner/husband who was the respondent before the Apex Court to pay a sum of Rs.10,000/- per month towards maintenance to the respondent/wife in addition to the maintenance which he already paying to his children.

10. Thus, an attempt is made by Shri Ansari, the learned Counsel for the respondent to submit before this Court that the petitioner/husband 9 wp1912.15 cannot be absolved from paying maintenance to both the children. The issue for consideration before this Court is as to whether the order passed by the learned Judge, Family Court dated 16.10.2014 directing the petitioner/husband to pay an amount of Rs.5,000/- per month to the major son Harsh towards interim maintenance is sustainable. It is the submission of Shri Ansari, the learned Counsel for the respondent/wife that the provisions of the Hindu Marriage Act though make a mention of passing interim orders in respect of custody maintenance and education of minor children, there is no such specific mention in the provision of Section 24 of the said Act. It is further submitted by the learned Counsel that even though son Harsh is a major son and he is prosecuting his study as the respondent/wife is having no independent source of income and as the major son Harsh is prosecuting his further study i.e. a post graduation, the same analogy of Section 26 would be applicable for providing the financial support to son Harsh by way of Section 24 of the said Act. This being the issue for consideration, it would be necessary to refer to the said provisions, as under :-

"24. Maintenance pendente lite and expenses of proceedings.

- Where in any proceeding under this Act it appears to the Court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the Court to be reasonable.

10 wp1912.15 [Provided that the application for the payment of the expenses of the proceeding and such monthly sum during the proceeding, shall, as far as possible, be disposed of within sixty days from the date of service of notice on the wife or the husband, as the case may be.]

25. ...

26. Custody of children. - In any proceeding under this Act, the Court may, from time to time, pass such interim orders and make such provisions in the decree as it may deem just and proper with

respect to the custody, maintenance and education of minor children, consistently with their wishes, wherever possible, and may, alter the decree, upon application by petition for the purpose, make from time to time, all such orders and provisions with respect to the custody, maintenance and education of such children as might have been made by such decree or interim orders in case the proceeding for obtaining such decree were still pending, and the Court may also from time to time revoke, suspend or vary any such orders and provisions previously made.

[Provided that the application with respect to the maintenance and education of the minor children, pending the proceeding for obtaining such decree, shall, as far as possible, be disposed of within sixty days from the date of service of notice on the respondent.]"

11. Perusal of the provisions clearly shows that under Section 26, a provision is made to provide financial support to the wife in respect of the custody maintenance and education of minor children. The said provision takes care of the aspect of the education of minor children. (emphasis supplied). There cannot be a dispute on the laudable object of the Act that in case the wife who is facing financial hardship and the minor children who are prosecuting the education, the minor children either should not 11 wp1912.15 be deprived of their education or should not suffer any such hurdle which would prohibit them in pursuing their education, the provision is made to give support in such cases. The language of Section 24 is clear. There is no reference to such a provision for children. In the initial order of the family Court, the judgment of this Court in the case of B. (Husband) .v. A. (Wife) (cited supra), was relied upon. It is the submission of Shri Ansari, the learned Counsel for the respondent that as there is no such a distinction especially carved out under the provision of Section 24 of the said Act even the major son Harsh would be entitled for the maintenance. In support of his submission, Shri Ansari, the learned Counsel places reliance on the judgment of the Madhya Pradesh High Court in the case of Lakhankant Tiwari .v. Smt. Radha Tiwari (First Appeal No. 188/2015 decided on 12 th May, 2016). In another judgment of the MP High Court in the case of Dr. Avinash Pawar .v. Dr. Sunita Pawar (Civil Revision No. 2992 of 1999 decided on 26.04.2000), the learned Single Judge of the MP High Court (as he then was), had occasion to consider all the aspects including the aspect of the judgment of the Apex Court granting maintenance to a married daughter. As the very submissions which are advanced before this Court by Shri Ansari, the learned Counsel for the respondent were made to claim maintenance for major son, before the Hon'ble learned Single Judge of MP High Court, it would be necessary to refer to the relevant observations.

"To appreciate the rival submissions raised at the Bar it is 12 wp1912.15 apposite to refer to Section 24 of the Act, 1955 which reads as under :-

24. Maintenance pendente lite and expenses of proceedings. - Where in any proceeding under this Act it appears to the Court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the

husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the Court to be reasonable.

This provision came to be interpreted by the Apex Court in the case of Jasbir Kaur Sehgal and their Lordships have expressed the opinion that when the wife claims maintenance under Section 24 of the Act she can claim maintenance for the daughter who stays with her and is maintained by her. The MP High Court then further observed that Mr. Manish Verma, learned Counsel for the non-applicant, has submitted with immense emphasis that when the daughter is maintained by the wife and she is entitled to maintenance from the husband there is no reason to make any distinction between the daughter and a son. One may keep the provisions of Hindu Adoption and Maintenance Act, 1956 in view. The Apex Court in the case of Jasbir Kaur Sehgal, kept the provisions of said Act in view and held that the husband is under obligation to maintain an unmarried daughter and when an application under Section 24 of the Act, 1955 is filed there is no reason for not granting maintenance to the wife who maintains the daughter. Their 13 wp1912.15 Lordships did not desire to read Section 24 in the narrow sense and appreciated the factual backdrop in the light of the provision enshrined under Hindu Adoption and Maintenance Act, 1956. In this context I may profitably refer to Section 20 of the aforesaid Act which as under :

20. Maintenance of children and aged parents - (1) Subject to the provisions of the section a Hindu is bound, during his or her lifetime, to maintain his or her legitimate or illegitimate children and his or her aged or infirm parents.

(2) A legitimate or illegitimate child may claim maintenance from his or her father or mother so long as the child is a minor. (emphasis supplied).

(3) The obligation of a person to maintain his or her aged or infirm parent or a daughter who is unmarried extends insofar as the parent or the unmarried daughter as the case may be, is unable to maintain himself or herself out of his or her own earnings or other property.

On a bare reading of the aforesaid provision it becomes graphically clear that the child is entitled to maintenance as long as it is a minor. Exception has been carved out in Sub- section (3) which covers an unmarried daughter, but as far as a major son is concerned there is no exception. In my humble view a major son will not come within the purview of Section 24 of the Act, to be entitled to maintenance from the 14 wp1912.15 father. The decision rendered in the case of Jasbir Kaur Sehgal, is distinguishable and is not applicable when a case of major son arises." (emphasis supplied).

12. It would be interesting to note that the claim in respect of the applicant i.e. major son Harsh is not on the ground that he is prosecuting his study but it is stated that the son Harsh has completed his engineering course i.e. he has cleared a basic degree course and as he is unable to get any job, as such he is willing to continue his further education. There is no dispute that when the application under Section 24 read with Section 26 was filed, Harsh had already attained the majority and was a major son.

13. In view of the above referred facts, I am unable to accept the submission of Shri Ansari, the learned Counsel for the respondent and I see no reason to take a different view than the view expressed by the learned Single Judge of the MP High Court in the matter of Dr. Avinash Pawar .v. Dr. Sunita Pawar (cited supra). The order impugned in the petition needs an indulgence at the hands of this Court. The order passed by the learned Judge, Family Court dated 16.10.2014 is modified to the effect that the petitioner/husband shall pay an amount of Rs.5,000/- per month to the minor son Yash only towards interim maintenance from the date of application i.e. 14.07.2014. It is submitted by the learned Counsel for the petitioner that the other minor son Yash has attained the majority.

The petitioner is at liberty to approach the learned Judge, Family Court in 15 wp1912.15 case, it is so advised.

The petition stands disposed of in aforesaid terms. Rule is accordingly made absolute.

JUDGE *rrg.

16 wp1912.15 C E R T I F I C A T E "I certify that this Judgment uploaded is a true and correct copy of original signed Judgment."

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